



DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

PURSUIT CRITIQUE

TROOPER NAME – TPR Ignacio Orozco #325 and CPL James Hensley #202

Work Assignment: Troop/Division - A; Post/Unit – Post 43 - Calhoun and Post 28 - Jasper

INCIDENT REPORT # DPS00164555

Related Crash Reports: _____ ; _____ ; _____

P.I.T. Involved: No

S.C.R.T. Involved: No

Special Investigations Unit Involved: No

Use of Force Involved: No

MEETING

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

Date: 3/20/2024

Time: 1235 hours

Location: Post 43 - Calhoun and via conference call.

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present: Lieutenant Tim Nichols #36, SGT Michael Best #216, CPL James Hensley #202 and TPR Ignacio Orozco #325

INITIATION

1. Provide the date and time the trooper became involved in the pursuit.

Date: 3/8/2024

Time: 1311 hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

On 3/8/2024, at approximately 1311 hours, CPL Hensley was traveling south on I-75 near mile marker 324, when he observed a green and black sport motorcycle with no tag pass his vehicle in excess of 100 miles per hour. When CPL Hensley activated all his emergency equipment to initiate a traffic stop, the violator failed to stop and a pursuit ensued.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

☒ N/A

If Yes, explain:

4. List the number and identity of other agencies and officers involved in the pursuit.

☐ N/A

If needed, list: Along with CPL Hensley and TPR Orozco, Lieutenant James Robillard #68 was involved in the pursuit.

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

☒ N/A

If Yes, list:

6. Did the trooper take appropriate safety precautions?

☒ Yes

☐ No

If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

☒ Yes

☐ No

If no, explain:

COMMUNICATION

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

☐ N/A

If Yes, explain: CPL Hensley contacted the Troop A Communications Center by radio and informed them that he was in a pursuit. CPL Hensley provided his location, direction of travel and a vehicle description. Senior Dispatcher A. Jennings received this information and created a CAD call for the pursuit.

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.
- Any need for assistance.

☒ Yes

☐ No

If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A

Explain: Once the pursuit initiated, Senior Dispatcher A. Jennings cleared the radio for emergency traffic before conducting a broadcast of the pursuit to all Troop A

Troopers. Dispatcher Coffman contacted the Gordon County 911 Center by telephone to inform them of the pursuit and to request assistance.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☒ N/A If Yes, explain:

5. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes ☐ No If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☒ N/A If Yes, explain:

PURSUIT

1. Describe the route the pursuit traveled, its duration and distance.

Describe: The pursuit initiated on I-75 South near mile marker 324 and continued southbound until the violator exited the interstate at GA 53 (Exit 310). The pursuit then turned right onto GA 53 West and terminated on GA 53 at GA 3 when TPR Orozco and CPL Hensley lost visual contact. The pursuit traveled approximately 14.4 miles and lasted 8 minutes and 25 seconds.

2. Were the trooper's actions during the pursuit objectively reasonable?

☒ Yes ☐ No If no, explain:

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☐ N/A If Yes, explain: Once the pursuit entered Gordon County (Post 43 territory), CPL Hensley yielded the primary position to TPR Orozco.

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☐ N/A If Yes, explain: Once TPR Orozco took over the primary position, CPL Hensley remained in the secondary position and called the pursuit in order to allow TPR Orozco to concentrate on his driving.

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☐ N/A If Yes, explain: The violator's actions during the pursuit support a charge of Felony Fleeing and Attempting To Elude.

6. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

7. Did the trooper practice commentator driving?

☒ Yes ☐ No If no, explain:

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes ☐ No If no, explain:

DRIVING SKILLS

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☒ Yes ☐ No If no, explain:

2. Were the driving skills/techniques initiated appropriately?

☒ Yes ☐ No If no, explain:

3. Were the driving skills/techniques appropriate during the pursuit?

☒ Yes ☐ No If no, explain:

4. Were the driving skills/techniques appropriate during termination?

☒ Yes ☐ No If no, explain:

5. Did the trooper appear to experience adrenalin rush, tunnel vision, or any other internal/external factors?

☒ No If Yes, explain:

6. Did the trooper get into the danger zone due to adrenalin rush, tunnel vision, or other factors?

☒ No If Yes, explain:

EQUIPMENT

1. Were the blue lights and siren in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

3. Was the in-car camera working properly?

☒ Yes ☐ No If no, explain:

4. Was the trooper's microphone working properly?

☒ Yes

☐ No

If no, explain:

TERMINATION

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☒ Yes

☐ No

If no, explain:

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☒ N/A

If Yes, explain:

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☒ N/A

Explain:

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A

Explain: TPR Orozco and CPL Hensley utilized all their emergency equipment throughout the pursuit, exercised due caution at intersections and operated their patrol vehicles in a responsible manner.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: The pursuit occurred during daytime hours with cloudy skies, light sprinkles of rain and a damp road surface. The traffic conditions along I-75 would be described as moderate to heavy.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☐ N/A

If Yes, explain: TPR Orozco and CPL Hensley properly discontinued the pursuit once visual contact was lost. This decision was reasonable, within the guidelines of DPS policy and prevented further risk of harm to the public.

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☐ N/A

If Yes, explain: Once TPR Orozco and CPL Hensley lost visual contact with the suspect, they discontinued the pursuit. Their actions were in compliance with DPS policy.

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A

If Yes, explain: During the pursuit, the violator fled at high speeds while recklessly changing lanes between other vehicles and drove in the emergency lane. The high speed driving of the violator posed a great risk to the public while clearly demonstrating no regard for the safety of all others involved.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☒ N/A

If Yes, explain:

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☐ N/A

If Yes, explain: Once TPR Orozco and CPL Hensley lost visual contact with the suspect, they discontinued the pursuit. Their actions were in compliance with DPS policy.

11. If there were any injuries, state who received them, the type and severity.

☒ N/A

If Yes, explain:

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A

If Yes, explain:

13. Address any damage to vehicles.

☒ N/A

If Yes, explain:

TROOPER'S ABILITIES AND EXPERIENCE

1. Prior pursuits (compare if appropriate).

☐ N/A

If Yes, explain: This was TPR Orozco's first pursuit as a Georgia State Trooper. CPL Hensley has been involved in numerous pursuits during his career as a State Trooper.

2. Past use of techniques and high speed driving.

☐ N/A

If Yes, explain: TPR Orozco and CPL Hensley have received E.V.O.C. and Advanced E.V.O.C. Training.

ISSUES ADDRESSED

1. Positives.

☐ N/A

If Yes, explain: Both Troopers operated their patrol vehicles in a responsible manner during the pursuit and verbally cleared intersections. CPL Hensley did a great job commentating and communicating the violator's actions during the pursuit. After the pursuit had been terminated, Lt. Robillard located the violator on GA 53 and was able to take him into custody without further incident.

2. Areas for improvement.

☒ N/A

If Yes, explain:

3. Other considerations.

☒ N/A

If Yes, explain:

RESPONSE FROM TROOPER OR SUPERVISOR

1. Allow trooper and supervisor an opportunity to respond or add comments.

☐

N/A

If Yes, explain: CPL Hensley complimented TPR Orozco on his driving skills during the pursuit.

CORRECTIVE ACTION TAKEN

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.

☒

N/A

If Yes, explain:

Lt. T. L. Nichols #36

Reviewing Officer

Lt. T. L. Nichols #36

3/21/2024

Date